

File No.: EXP202213428

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated March 7, 2024, and based on the following

FACTS

FIRST: On March 7, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202213428, proceeding to archive the preliminary investigation proceedings. This resolution was notified to the appellant on the date indicated in the acknowledgment of receipt that appears in the file.

SECOND: The appellant submitted on March 27, 2024, to this Spanish Agency for Data Protection, a recourse for reconsideration, fundamentally based on the following reasons, which are summarized as follows:

The appellant rejects that the existence of a Mobility Ordinance in the City Council of Madrid implies that the regulations on data protection have not been violated.

1. Alleged error in the interpretation of regulations:

In the opinion of the appellant, both the City Council of Madrid and the AEPD confuse the concepts of resolution and provision. The recourse states that the resolution is the final administrative act of an administrative file. Its characteristic note is the singularity of the act, the ability to apply it only to a specific situation. The appellant believes that there must be a resolution for each radar or set of radars with a camera. Conversely, the provision is the act by which regulatory power is exercised and through which general or generic matters are disposed of. The appellant considers that the sole additional provision of Royal Decree 596/1999, of April 16, requires a resolution, not a provision. According to the appellant, in this case, there is no resolution. Therefore, the cameras attached to the radars would violate data protection regulations. Furthermore, it states that the cited regulations grant the competence to resolve within the framework of the General Administration of the State to the Director General of Traffic (assigning competence to a specific authority). The appellant believes that the same should be done at the local level.

The Mobility Ordinance could grant this competence to the mobility councilor or similar. In the opinion of the appellant, what cannot be done is to grant a blank authorization to place capturing cameras at discretion.

2. Other allegations regarding the content of the administrative reports:

The appellant asserts that there are inaccuracies and erroneous data in the administrative reports contained in the file. It reproduces a paragraph from the report prepared by the General Subdirectorate of Fine Management of the City Council of Madrid, which highlights that the file of the infractions captured through the radar subject to the claim is declared before the AEPD, considering that it reflects the ignorance of data protection regulations by the City Council of Madrid. It also partially reproduces the report from the Director General of the Municipal Police dated January 18, 2023, stating that there is no resolution prior to the transfer of the radar to the City Council of Madrid. It then emphasizes that even if such a resolution existed, the circumstances would have changed, given that the ownership of the road has changed.

The recourse document concludes by stating that there are grounds for nullity and annulability, and that, since new documents have been incorporated into the file that have not been disclosed to that party prior to the resolution, the recourse should be admitted.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter,

LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, the following should be noted.

After examining the content of the recourse for reconsideration dated March 27, 2024, this Agency reaffirms the content of the legal grounds of the resolution by which the archiving of the preliminary investigation proceedings was agreed upon, issued on March 7, 2024.

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As highlighted in the contested resolution, in order to analyze the content of the complaint, it has been based on the provisions of the GDPR, examining a possible violation of the provisions of Article 6.1 of said Regulation.

The sole additional provision of Royal Decree 596/1999, of April 16, which approves the Regulation for the development and execution of Organic Law 4/1997, of August 4, which regulates the use of video cameras by the Security Forces and Corps in public places, states:

“Applicable regime for video cameras for the surveillance, control, and discipline of traffic”

1. The installation and use of video cameras and any other means of capturing and reproducing images for the control, regulation, surveillance, and discipline of traffic on public roads shall be carried out in accordance with the provisions of the eighth additional provision of Organic Law 4/1997 and this provision.

2. It shall be the responsibility of the public administrations with competence for traffic regulation to authorize the installation and use of the devices referred to in the previous section.

3. The resolution ordering the installation and use of fixed capturing and reproducing devices shall generically identify the public roads or sections thereof whose image may be captured, the measures aimed at ensuring the preservation of the availability, confidentiality, and integrity of the recordings or records obtained, as well as the body responsible for their custody and for resolving requests for access and cancellation.

The validity of the resolution shall be indefinite as long as the circumstances that motivated it do not change.

(...)

On one hand, the City Council of Madrid is competent for the management, surveillance, and discipline of traffic on the urban roads under its ownership, as well as for reporting the violations committed on such roads and sanctioning them (Article 7.a) of Legislative Royal Decree 6/2015, of October 30, which approves the Law on Traffic, Motor Vehicle Circulation, and Road Safety).

On the other hand, the provision set forth in the third section of the sole additional provision, which has just been reproduced, does not establish a strictly formal concept of “resolution,” understood as a singular administrative act issued in execution of a prior provision, but rather anticipates an action by the competent traffic authority authorizing the installation and use of radars. In this case, the Sustainable Mobility Ordinance (hereinafter, OMS), approved by the City Council of Madrid.

In this regard, Article 13 of the OMS, which regulates automated means of traffic management, states: “Article 13. Automated means of traffic management.

1. The City Council of Madrid will employ technological means both to gather real-time information on pedestrian traffic and the circulation of all types of vehicles and to manage urban mobility in a safer, more efficient, sustainable, and intelligent manner.

2. The Mobility Management Center (CGM) implements the technological control of information panels, cameras, loops, sensors, and other technical elements and functionalities that allow for the development of science and technology.” (the underlining is from the AEPD).

Furthermore, Article 15, relating to technical means of traffic and parking surveillance, establishes:

“Article 15. Technical means of traffic and parking surveillance.

1. The City Council of Madrid may employ automated technical means for the surveillance of traffic

and parking, as well as for the automated reporting of violations committed using, among others, the following technical means defined in Annex VI (...)

2. The images, and where applicable, videos, captured by these means will be used as evidence in the automated or personal reporting of violations.

3. The location of fixed means will be indicated by signage and on the municipal website. Mobile means, by their very nature, do not require signage, without prejudice to the possibility of using variable message panels or other means to inform about areas where these controls occur frequently.” (the underlining is from the AEPD).

On the other hand, the third additional provision of the OMS, relating to the Protection of personal data, provides:

“Protection of personal data.

Within the framework of this ordinance, special protection will be given to the personal data contained in the information that the City Council of Madrid and its linked or dependent public bodies obtain and use, guaranteeing, in all cases, the rights inherent to the protection of the...”

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personal data, for which security measures will be established to prevent any personal traceability not covered by the purpose or consent.

In general, compliance with Regulation (EU) 2016/679 of the European Parliament and of the Council and Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights will be upheld, especially regarding the principles of data protection, legitimacy of processing, rights of affected individuals, data protection by design and by default, data processors, security breaches, and security measures in accordance with the National Security Scheme (ENS) resulting from the corresponding risk analyses and, where applicable, impact assessments.

As established in Article 15.3 of the OMS, the website of the Madrid City Council provides information about the location of fixed radars, indicating the responsible party.

As can be seen, the OMS provides for the use of automated technical means for traffic monitoring and discipline. Its content complies with the transparency and information purpose pursued by the sole additional provision of Royal Decree 596/1999, of April 16.

The subsequent instrument, published on the City Council's website, does not limit itself to generically identifying the affected road or section but details the kilometer point where the fixed radars are located.

For all these reasons, there is no evidence of a violation of Article 6.1 of the GDPR.

On the other hand, the fact that the General Subdirectorate for Fine Management of the Madrid City Council states that the file of infractions captured through the radar in question has been declared to the AEPD does not negate that, in the examined case, there is no evidence of a violation of Article 6.1 of the GDPR.

The allegations made by the Madrid City Council as a whole have been examined from the perspective of a possible violation of Article 6.1 of the GDPR, leading to the conclusion set forth in the legal basis III of the contested resolution.

No grounds for nullity or annulment have been identified that would lead to the acceptance of the filed appeal.

The two reports obtained by the AEPD during the transfer phase (report from the General Subdirectorate for Traffic Fine Management of the Madrid City Council dated December 29, 2022, and report from the Director General of the Municipal Police dated January 18, 2023) have been incorporated into the file. However, this Agency is not obliged to transfer their content to the complainant prior to issuing a resolution to archive the proceedings.

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Any circumstance that may be of interest for the complainant to allege in this regard can be expressed through the corresponding appeal for reconsideration, as the appellant has done.

III

Conclusion

Consequently, in this appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

IV

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appellant, the mandatory pronouncement of this Agency regarding the present appeal has not been issued as of the date of this document.

In accordance with the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the sense of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nonetheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all proceedings, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the filed appeal for reconsideration.

Considering the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on March 7, 2024, in file EXP202213428.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDPGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDPGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal.

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administrative before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

181-21112023

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